

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 16, 2026
8:30 a.m.

1. AUDRA MARTINEZ V. RYAN MARTINEZ

26FL0735

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 31, 2026, to award spousal support and child support for the parties' minor child, LM (age 11), and grant Petitioner temporary exclusive possession of the marital residence located at 1002 Tahoe Island Drive in South Lake Tahoe, California. Petitioner concurrently filed with her RFO the required Income and Expense Declaration (I&E).

On August 11, 2026, Petitioner filed a Notice and Acknowledgement of Receipt, wherein Respondent's attorney acknowledged receipt of the RFO and the court's notice of tentative ruling system. The signed acknowledgment does not indicate, however, that Respondent received a copy of Petitioner's I&E.

On August 25, 2026, the parties submitted a stipulation continuing the hearing on the instant RFO from September 09, 2026, to September 16, 2026.

On August 26, 2026, the parties stipulated to sharing joint temporary legal custody of LM; Petitioner will have temporary physical custody of LM and Respondent shall have parenting time every other weekend from Friday at 5:00 p.m. until Sunday at 5:00 p.m. The parties further stipulated that Petitioner shall have temporary exclusive possession of the marital residence.

On September 01, 2026, Respondent filed his I&E. On September 02, 2026, Respondent filed a Responsive Declaration to Petitioner's RFO. To date, however, there is no proof of service for these submissions in the court's file.

Also on September 01, 2026, Petitioner filed a Supplemental Declaration, a copy of which was electronically served upon Respondent that same day per the proof of service, also filed September 01, 2026.

Based upon the parties' stipulation, the portion of the RFO concerning the marital residence is denied as moot. For purposes of calculating child support, the court finds that the Respondent's custody timeshare is 14 percent.

Petitioner's gross monthly income is currently \$3,249 (rounded down from \$3,249.45 to the nearest dollar amount). Petitioner's I&E does not indicate the number of exemptions she claims on her taxes (see, I&E, filed Jul. 31, 2026, ¶ 3(d)), so it is unclear whether, in addition to LM, Petitioner claims an exemption for her 19-year old child. In the absence of such showing, the court will calculate the support amounts under the assumption that Petitioner does not claim an exemption for her 19-year old child. Petitioner is entitled to a \$111 deduction (rounded up from \$110.60 to the nearest dollar amount) for medical expenses. Because Petitioner has temporary exclusive possession of the marital residence, the court finds that Petitioner is also entitled to a \$274 deduction (rounded up from \$273.82 to the nearest dollar amount) for property tax expenses and a \$1,174 deduction (rounded up from \$1,173.51 to the nearest dollar amount) for interest on the mortgage.

Respondent's gross monthly income (non-taxable) is \$7,256 (rounded up from \$7,255.94 to the nearest dollar amount), comprised of \$2,467 in Social Security Disability

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 16, 2026
8:30 a.m.

benefits and \$4,788.94 in VA compensation. Respondent is entitled to a \$110 deduction for medical expenses.

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$1,607.00 and Spousal Support to the Petitioner in the amount of \$914.00 beginning August 01, 2026, and the first of each month thereafter until further order of the court.

The court sets the matter for further review on December 30, 2026, to be heard concurrently with the hearing on Respondent's RFO filed September 02, 2026. The parties shall file supplemental declarations and updated I&Es no later than December 18, 2026, for the court's consideration. The court specifically directs Petitioner to update the court on the status of her salary from the VA as care giver for Respondent.

TENTATIVE RULING #1: THE RFO IS GRANTED IN PART AND DENIED IN PART. TO THE EXTENT THE RFO REQUESTS TEMPORARY EXCLUSIVE POSSESSION OF THE MARITAL RESIDENCE, THE COURT DENIES THE REQUEST AS MOOT. RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$1,607.00 AND SPOUSAL SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$914.00 BEGINNING AUGUST 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. THE COURT SETS A FURTHER REVIEW HEARING ON THE ISSUE OF CHILD SUPPORT AND SPOUSAL SUPPORT FOR 8:30 A.M., WEDNESDAY, DECEMBER 30, 2026, IN DEPARTMENT 12 TO BE HEARD CONCURRENTLY WITH THE HEARING ON RESPONDENT'S RFO FILED SEPTEMBER 02, 2026. THE PARTIES SHALL FILE AND SERVE SUPPLEMENTAL DECLARATIONS AND UPDATED INCOME AND EXPENSE DECLARATIONS NO LATER THAN DECEMBER 18, 2026. THE COURT SPECIFICALLY DIRECTS PETITIONER TO UPDATE THE COURT ON THE STATUS OF HER SALARY FROM THE VA AS CARE GIVER FOR RESPONDENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

ALTHOUGH A REQUEST FOR ORAL ARGUMENT MUST BE SUBMITTED NO LATER THAN 4:00 P.M. ON SEPTEMBER 15, 2026, ANY SUCH ORAL ARGUMENT WILL BE HELD AT 8:30 A.M., WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow		
#of children	0	1	2026		Guideline	Proposed
% time with NCP	14.00 %	0.00 %		Comb. net spendable	10221	10221
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	2 *	Nets(adjusted)	Father		
Wages+salary	0	3249	Father	7146	Payment cost/benefit	-2521
Self-employed income	0	0	Mother	3075	Net spendable income	4625
Other taxable income	0	0	Total	10221	Change from guideline	0
TANF+CS received	0	0	Support		% of combined spendable	45%
Other nontaxable income	7256	0	Addons	0	% of saving over guideline	0%
New spouse income	0	0	Guideln CS	1607	Total taxes	0
401(k) employee contrib	0	0	Alameda SS	914	Dep. exemption value	0
Adjustments to income	0	0	Total	2521	# withholding allowances	0
SS paid prev marriage	0	0	-		Net wage paycheck	0
CS paid prev marriage	0	0			Mother	
Health insurance	110	111			Payment cost/benefit	2521
Other medical expense	0	0			Net spendable income	5596
Property tax expense	0	274			Change from guideline	0
Ded interest expense	0	1174	Proposed		% of combined spendable	55%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%
Misc tax deductions	0	0	CS	1607	Total taxes	63
Qual bus income ded	0	0	SS	914	Dep. exemption value	0
Required union dues	0	0	Total	2521	# withholding allowances	0
Mandatory retirement	0	0			Net wage paycheck	2723
Hardship deduction	0 *	0 *	Saving	0		
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	14 - 86	0	0	0	Father	1607	Father	1607	Father
	14 - 86	0	0	0	Father	1607	Father	1607	Father

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 16, 2026
8:30 a.m.

2. STEPHAN HAASE V. TAYLOR BROOKE MYATT

23FL0933

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on June 30, 2026, seeking need-based attorney fees (\$85,000) and expert witness fees (\$50,000). Petitioner concurrently filed with his RFO a current Income and Expense Declaration (I&E). Proof of service, also filed June 30, 2026, shows the RFO and I&E were both electronically served upon Respondent that same day.

On July 08, 2026, the parties stipulated to continue the instant hearing from August 12, 2026, to September 16, 2026.

On September 02, 2026, Respondent filed a Responsive Declaration, wherein Respondent requests the court to grant her October 01, 2025, request for Family Code section 271 (“Section 271”)¹ sanctions against the Petitioner in the amount of \$25,000.² Respondent concurrently filed a supporting memorandum of points and authorities and current I&E. Proof of service, also filed September 02, 2026, shows that each of Respondent’s aforementioned filings were electronically served upon Petitioner that same day.

On September 09, 2026, Petitioner filed a Responsive Declaration to Respondent’s request for Section 271 sanctions, a copy of which was electronically served upon Petitioner that same day per the proof of service attached to said declaration. Petitioner also filed a reply brief in support of his RFO; to date, however, there is no proof of service for the reply brief in the court’s file. Petitioner’s reply brief requests his own Section 271 sanctions against Respondent. (Reply at 6:12–13.) However, a request for Section 271 sanctions may not be raised for the first time in a reply brief. Additionally, without proof of service for the reply brief, the court does not consider the reply brief at all.

On September 11, 2026, Respondent filed an objection and request to strike Petitioner’s Reply Declaration on the ground that Respondent filed an oversized declaration without leave of court. On September 14, 2026, Petitioner filed an opposition to Respondent’s request to strike. As previously mentioned, there is no proof of service for Petitioner’s Reply Declaration. For that reason, the court does not consider it. Therefore, the court need not consider Respondent’s objection and request to strike, or Petitioner’s related opposition.

¹ Under Section 271, subdivision (a), “the court may base an award of attorney’s fees and costs on the extent to which any conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys.” (Fam. Code, § 271, subd. (a).)

² On February 10, 2026, Respondent filed a stipulation wherein the parties agreed that, if Petitioner “seeks attorney’s fees before the trial date,” then Respondent’s October 01, 2025, “request for Family Code Section 271 sanctions will be heard at that same time.” (Resp. Decl., filed Sep. 02, 2026, Ex. A at ¶ 14.)

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 16, 2026
8:30 a.m.

Turning to the merits, it appears to the court that Petitioner may have inflated certain monthly expenses in his I&E. For example, he estimates his monthly maintenance and repair expenses for his home amount to \$2,000. He also estimates \$1,500 on groceries and household supplies, yet also estimates \$800 for eating out. Under education, he estimates a proposed need of \$1,200. He also estimates \$2,000 in boat expenses (not including the monthly payment on the boat loan).

Based on Petitioner's access to funds (i.e., approximately \$800,000 in savings), the court finds that an award of attorney fees and costs (including the requested expert witness fees) is not appropriate at this time. (Fam. Code, § 2030, subd. (a)(2).) The court denies Petitioner's request for attorney fees and expert witness fees, both without prejudice to future re-application.

The court defers its ruling on Respondent's request for sanctions to the time of trial without prejudice to Respondent re-raising the request earlier if warranted by subsequent actions by the Petitioner.

TENTATIVE RULING #2: PETITIONER'S RFO IS DENIED WITHOUT PREJUDICE. RESPONDENT'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS IS DEFERRED TO THE TIME OF TRIAL WITHOUT PREJUDICE TO RESPONDENT RE-RAISING THE REQUEST EARLIER IF WARRANTED BY SUBSEQUENT ACTIONS BY THE PETITIONER.

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